

SC126806 SC126806

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-24

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Case Number: SC126806 Hearing Date: August 24, 2026 Dept: I

The application to advance the hearing date on the motion for judgment on the pleadings is DENIED.

While the court understands that these parties would rather not prepare for trial, they have been in the case since October 17, 2024. The theory of the MJOP is statute of limitations. And it is a pleading motion—not a summary judgment motion.

While the court appreciates that they would rather not go to trial if their theory is correct, right now everyone is scrambling to get ready for the trial. The moving parties do not explain why a theory that was supposedly obvious to them well over 18 months before they filed their motion must be advanced now.

The court just does not see the exigent circumstances. The court notes that even if the court could hear the motion on close to statutory notice, it would not be heard until about a month before trial. Worse, it would likely have to be heard either on barely statutory notice or after the court returns from an absence, which is only a couple of weeks before trial.

This is also a request to define the scope of Phase I of the trial. The court's view is that this phase will deal with all aspects of the case involving ownership of the unit. That includes voidable transfer issues. To the extent that there are equitable portions and legal portions, the trial will be simultaneous but any evidence that goes only to the equitable portion will be excluded. If there is additional evidence going to the equitable part of this phase, it will be presented immediately after the jury's verdict. This phase will NOT include any issues related to the alleged sexual misconduct directed at Jane Doe or May Doe. The court's hope is that this will

eliminate the aspects of the case that involve many parties so that a judgment can be entered as to those parties.

If further discussion is needed, now is the time to have it.